

**IN THE UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF MISSOURI**

CHARLES D. SMILEY,
2407 Castle Drive
Independence, Missouri 64057,

Plaintiff,

vs.

TERRY WAYNE BROWN,
2832 Clark Road
Spring Hill, Tennessee 37174

(Service by Sheriff of Williamson Co. Tennessee)

and

B&W CARTAGE COMPANY, INC.
9850 Pelham Road
Taylor, Michigan 48180

(Service via First Class Mail)

Defendants.

COMPLAINT

COME NOW Plaintiff, Charles D. Smiley, by and through his attorneys, and for his Complaint states and alleges:

1. Plaintiff is a resident of Independence, Jackson County, Missouri.
2. Defendant, Terry Wayne Brown is a resident of Spring Hill, Williamson County, Tennessee. Defendant, B&W Cartage Company, Inc., is a Michigan corporation and at the times mentioned herein was doing business in the state of Missouri and employed Defendant, Terry Wayne Brown, who was acting in the course and scope of his employment for said Defendant.

3. Jurisdiction is based on 28 U.S.C. §1332 as Plaintiffs and Defendants are citizens of different states and the matter in controversy exceeds the value of \$75,000.

4. On February 4, 2014, Plaintiff, Charles D. Smiley, was operating a Peterbilt tractor hauling a trailer owned by Paccar Leasing Company, in an easterly direction on I-70 in Foristell, Warren County, Missouri. Due to blowing snow on the interstate, Plaintiff began to slow down, but Defendant, Terry Wayne Brown (who was also driving eastbound on I-70 behind Plaintiff), failed to slow down and struck the rear of the trailer being hauled by Plaintiff causing Plaintiff to suffer the injuries described below.

4. Defendant, Terry Wayne Brown, acting in the course and scope of his employment for Defendant, B&W Cartage Company, Inc., was negligent in the following respects:

- a) he failed to keep a careful lookout;
- b) he drove too fast under the conditions and circumstances that existed;
- c) he failed to apply his brakes in a timely manner;
- d) he knew, or by the use of the highest degree of care could have known, that there was a reasonable likelihood of collision in time thereafter to have stopped, or swerved, or slackened speed, or slackened speed and swerved, but Defendant failed to do so;
- e) he drove at a speed which made it impossible for him to stop within the range of defendant's visibility, and
- f) he followed the tractor and trailer operated by Plaintiff too closely.

5. Defendant, Terry Wayne Brown's vehicle came into collision with the rear of Plaintiff's vehicle and Defendant was thereby negligent

6. The negligence of Defendant, Terry Wayne Brown, acting in the course and scope of his employment for Defendant, B&W Cartage Company, Inc., directly caused, or directly

contributed to cause, Plaintiff, Charles D. Smiley, to suffer injuries to his back and neck, left shoulder, left knee and head.

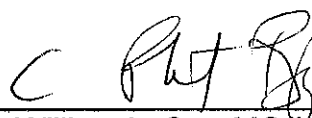
7. Plaintiff, Charles D. Smiley, has incurred medical expenses in the care and treatment of his injuries in excess of \$56,000 and will continue to incur medical expenses in the future because of the permanent nature of his injuries.

8. Plaintiff, Charles D. Smiley, has suffered lost income as a result of his inability to work because of the permanent injuries he has suffered in the collision. Plaintiff is not able to pursue gainful employment because of his permanent and disabling injuries.

WHEREFORE, Plaintiff, Charles D. Smiley, prays the Court for its judgment of damages against Defendants, and each of them, for a reasonable amount in excess of Seventy-five Thousand Dollars (\$75,000.00) together with the costs of this action, and for such further relief as the Court may deem just and proper.

Respectfully submitted,

WHITE, GRAHAM, BUCKLEY & CARR, LLC

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